

		Moving Defendants to give notice.
5	Hoang vs. Toyota Motor Sales, U.S.A., Inc.	TENTATIVE RULING: <u>Motion 1. Demurrer to Complaint</u> Defendant Toyota Motor Sales, U.S.A., Inc., (“TMS”) demurs to the sixth cause of action in the Complaint of Plaintiff Thach D. Hoang. For the following reasons, the demurrer is OVERRULED. <u>Request for Judicial Notice</u> The court DENIES as unnecessary Defendant TMS’s request for judicial notice. (<i>See Zucchet v. Galardi</i> (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [citing <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 748, fn. 6].) <u>Timeliness</u> While a defendant generally has 30 days after service of a complaint within which to demur to the complaint or to file a motion to strike the complaint, an untimely challenge to the complaint may be considered by the court in its discretion. (<i>See Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 750.) The court exercises its discretion to consider Defendant TMS’s untimely demurrer, given the unique procedural history in this case. <u>Standard on Demurrers</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7.)